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JUSTIFICATION REVIEW DOCUMENT
FAR PART 16 EXCEPTION TO FAIR OPPORTUNITY JUSTIFICATION
For Actions Exceeding the Simplified Acquisition Threshold (SAT)

Program/Equipment: The Defense Language Institute Foreign Language Center (DLIFLC) M365 A5 (Academic Tenant) Annual Software License Subscription Renewal

Authority: FAR 16.505(a)(4) – Restricting consideration to an item peculiar to one manufacturer (e.g., a particular brand-name, product, or a feature of a product that is peculiar to one manufacturer).

[REDACTED]

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[REDACTED]

Reviews: I have reviewed this justification and find it adequate to support an exception to fair opportunity.

• **Program Manager:**

[REDACTED]

Small Business Professional:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Legal Counsel:

[REDACTED]

Director, MICC-Ft. Leavenworth:

[REDACTED]

Assistant Director, Small Business Program:

[REDACTED]

MICC Office of Counsel:

[REDACTED]

[REDACTED]

**FAR Part 16 Exception to Fair Opportunity Justification
Under Multiple Award Indefinite Delivery Contracts
For Actions Exceeding the Simplified Acquisition Threshold (SAT)**

1. Contracting Activity: U.S. Army Mission and Installation Contracting Command (MICC) - Leavenworth, 535 Kearny Ave, Blockberger Terrace, Bldg 338, Rm 207, Fort Leavenworth, KS 66027-1391.

2. Description of Action: The Defense Language Institute Foreign Language Center (DLIFLC) at Presidio of Monterey, CA requests a new, firm-fixed-price contract with any ITES-SW2 contract holder capable of providing the items in paragraph 3 below. The Government projects award for April 2025 and fiscal year 2025 and Operations and Maintenance, Army (OMA) funds will be used. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).

3. Description of Supplies/Services: The DLIFLC has a need for a brand name purchase of annual software license subscriptions for Microsoft License M365 A5 (Academic Tenant) at Presidio of Monterey. The following table displays all items required to be procured:

Line #	Quantity	Unit	Product/Part #	Description
0001	220	Ea	9EA-00039	Microsoft Windows Datacenter Edition License and software assurance 2-core
0002	56	Ea	7JQ-00341	Microsoft SQL Server Enterprise Core Ed - License and software Assurance Pack Academic Open Value License for 2 cores
0003	20	Ea	MX3-00115	Microsoft Visual Studio Enterprise - With MSDN, License and software Assurance Pack Academic Open Value 1 License Level F Additional Product 1 Year
0004	3,230	Ea	AAD-38400	Microsoft 365 Academic A5 Faculty - Subscription license for faculty user
0005	12,920	Ea	AAD-38405	Microsoft 365 Academic A5 Student - Subscription license for student user
0006	100	Ea	P4U-00001	Microsoft Visio Pro Online - Annual license
0007	100	Ea	7MA-00001	Microsoft Project Online - Annual License (12 months)

Line #	Quantity	Unit	Product/Part #	Description
0008	1	Ea	GST-00001	PowerBI Power Premium P1 - Subscription License
0009	25	Ea	SEK-00001	Microsoft Power Apps Premium - Subscription License
0010	50	Ea	ZXI-00009	Teams Premium per User - Subscription License
0011	450	Ea	101-00003	Defender for Endpoint Server - License and software assurance
0012	6,000	Ea	EP2-18221	Defender Endpoint P2 Student Sub Per User with student use discount
0013	8	EA		Microsoft 365 Education 10 TB Additional Storage for 1 year (12 months)

Period of Performance: 30 March 2025 to 29 March 2028

Estimated Delivery Date: 30 March 2025

Base Period: 30 March 2025 to 29 March 2026

Option Period 1: 30 March 2026 to 29 March 2027

Option Period 2: 30 March 2027 to 29 March 2028

4. Authority Cited: FAR 16.505(a)(4) – Restricting consideration to an item peculiar to one manufacturer (e.g., a particular brand-name, product, or a feature of a product that is peculiar to one manufacturer).

5. Reason for Authority Cited:

a. Microsoft licenses are propriety product of Microsoft Corporation and can only be purchased through authorized resellers or directly from the manufacturer. DLIFLC requires M365 A5 (Academic Tenant) in accordance with EDU Campus Agreement EA 60779266 to include Microsoft Office Suites Software and MS Power BI to provide collaboration and learning tools, email, SharePoint, classroom tools, voice, audio, and meeting capabilities along with warranty and support services for these products in support of the DLIFLC mission.

b. Alternatives: The DLIFLC mission requires a robust solution capable of supporting a complex enterprise. Alternative solutions, such as LibreOffice, Google Workspaces, Zoho, and WPS Office. Each of these solutions did not come close to meeting the

[REDACTED]

requirements due to many aspects that are integral to DLIFLC's mission including user and shared data storage, document collaboration, a knowledge portal solution, email, cybersecurity controls, and everything that Teams provides (instant messaging, voice/video/screen sharing calls, etc) as the current enterprise service provider. Thus, alternative solutions were unable to be approved for implementation.

c. Impact if justification not approved: Without renewing the Microsoft Office and Server Software annual licenses, all normal business operations, classroom instruction, email, and record keeping would be catastrophically disrupted.

6. Actions to Increase Competition: In accordance with AFARS 5139.101-90 Policy, The Army's Computer Hardware, Enterprise Software and Solutions (CHES) program, under the Program Executive Office Enterprise Information Systems, is the mandatory source for commercial information technology (IT) hardware and software purchases. This brand name requirement will be purchased through the CHES program with multiple vendors having an opportunity to compete for the requirement. No other source will be considered due to product availability in CHES. The notice required by FAR 5.201 to synopses is not required due to an exception at FAR 5.202(a)(6).

7. Market Research: Market research shows Microsoft License is available under contract vehicle CHES ITES-SW2. Out of 28 vendors only two of them provided quotes, while 18 vendors responded with no bid, not authorized reseller, not sufficient time to respond, etc. The 8 remaining vendors did not respond to the request for information by the closing date of 06 September 2024. This brand name requirement will be purchased through the CHES ITES-SW2 program and fair opportunity will be given to vendors that are under ITES-SW2 for the brand name Microsoft.

8. Other Facts:

Procurement History: DLIFLC initially purchased Microsoft Licenses in FY 2016 under various vendors and these licenses have been in continuous use at DLI ever since. Task order W91QF424F0108 was awarded for Microsoft Licenses on 29 March 2024 for 1 year only. This fiscal year, it was determined that DLI will continue to utilize these licenses and is requesting a performance period of a base year plus two option years.

Contract: W52P1J20D0043 / W91QF424F0108
Contractor: CDW GOVERNMENT LLC
Award Date: 29 MAR 2024
Competitive Status: Brand Name
Authority: FAR 16.505(a)(4)

[REDACTED]

[REDACTED]

[REDACTED]

9. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

10. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

[REDACTED]

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable. This determination will be made using price analysis. As a part of this basis, certified cost or pricing data will not be required and the following exception applies (FAR 15.403): Prices that will be agreed upon are based on adequate price competition.

[REDACTED]

12. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]

[REDACTED]

Approval

Based on the foregoing justification, I hereby approve the procurement of annual software license subscriptions for Microsoft License M365 A5 (Academic Tenant) for the Defense Language Institute Foreign Language Center, Presidio of Monterey, CA using an exception to fair opportunity pursuant to the authority of Federal Acquisition Regulation Part 16.505(a)(4) – “Restricting consideration to an item peculiar to one manufacturer.” The estimated value of the contract is [REDACTED] for three years with the period of performance consisting of a base year plus two option years, from March 2025 through March 2028. This approval is subject to availability of funds, and provided that the services or supplies herein described have otherwise been authorized for acquisition.

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[REDACTED]